

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

16. SIERRA OLSEN V. JUAN CHAVEZ

PFL20140209

Respondent filed a Request for Order (RFO) on February 2, 2026, seeking a change in venue to Sacramento County. Respondent filed a Declaration on February 3rd. Respondent filed an amended RFO on February 10, 2026. It appears to be identical to the February 2nd RFO, except it included multiple copies of the February 3rd declaration. Petitioner was mail served with the February 2nd RFO and other necessary documents on February 10th. There is no Proof of Service showing the February 10th amended RFO was served. The court drops the amended RFO from calendar and will proceed only with the February 2nd RFO.

Petitioner filed a Responsive Declaration on March 16, 2026. It was served on March 16th. Petitioner filed a further Declaration on March 19, 2026. It was served on March 19th. Petitioner opposes the transfer of the case to Sacramento County.

Pursuant to Civil Procedure Section 397, the court may, upon a properly noticed motion, transfer any matter where the court designated in the complaint is not the proper court. Cal. Civ. Pro. § 397(a). The burden is on the moving party to establish grounds for a change of venue. Fontaine v. Sup. Ct., 175 Cal. App. 4th 830 (2009). Respondent has not met his burden. The court cannot find the convenience of the parties and the interest of justice are served by transferring the matter to Sacramento County. The court, therefore, denies the request to transfer venue to Sacramento County.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: RESPONDENT'S REQUEST TO TRANSFER TO SACRAMENTO COUNTY IS DENIED. THE COURT CANNOT FIND THE CONVENIENCE OF THE PARTIES AND THE INTEREST OF JUSTICE ARE SERVED BY TRANSFERRING THE MATTER TO SACRAMENTO COUNTY. THE COURT, THEREFORE, DENIES THE REQUEST TO TRANSFER VENUE TO SACRAMENTO COUNTY. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.